

HOUSE BILL 2340

By Behn

AN ACT to amend Tennessee Code Annotated, Title 6;
Title 7 and Title 13, relative to municipal housing.

WHEREAS, the availability and the accessibility of housing remain out of reach for many working Tennessee families; and

WHEREAS, local housing inventory studies evaluate the supply, affordability, and future demand of housing, which serve to support comprehensive planning, guide land use policies, processes, and decisions, and inform public investment, thereby assisting a local government to address affordability; and

WHEREAS, medium-density housing, commonly referred to as "missing middle" housing, is a category of residential development falling between detached single-family housing and multi-family developments containing more than twelve units; and

WHEREAS, missing middle housing, if done appropriately, can provide additional housing choices and housing affordability within established neighborhoods without negatively impacting neighborhood character; and

WHEREAS, the creation of a modern pattern book can encourage more attainable housing types in response to the housing needs determined by the municipality by creating pre-approved designs and layouts that can enable small scale developers to more easily build such needed dwellings; and

WHEREAS, the potential for expediting and streamlining the construction of missing middle or other identified housing types will help to increase attainable housing and make the purchase or renting of housing units more affordable; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1.

The general assembly encourages municipalities to:

(1) Conduct, as part of their comprehensive planning process, an inventory of their housing stock. Such an inventory should identify the total number of housing units, the types of units, the age of such units, and the location and distribution of such units. The inventory should also describe vacancy rates, sales prices and rents, construction activity and permits, and an analysis of the current development capacity, availability of infrastructure, and land use ordinances and policies;

(2) Assess, as part of their comprehensive planning process, current and future housing needs in the municipality in association with any housing inventory. Such assessments should consider population trends and projections, size and composition of households, income distribution, and the number of households by age, cohort, or other appropriate populations. The assessment should also identify any gaps that may exist between housing costs and household incomes, the availability of housing units at various prices and terms, and the average percentage of household income required to purchase or rent a dwelling within the municipality. In conducting such an assessment, consideration should be given to projecting future demand, demographics, and housing needs; and

(3) Draft and adopt a pattern book for medium-density housing. Such pattern book should include an outline of the processes for building medium-density housing types within the municipality and varied design guides, including floor plans, conceptual elevations, and a step-by-step description of the building permit process to get such housing plans approved for construction.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.